



SPECIFICATIONS OF WORK

99th Readiness Division
Directorate of Public Works
Fort Dix, New Jersey 08640



15 January 2025

Project Name: Sealcoat and Restripe Asphalt
Project Number: CSS# 90330
Project Location: Chaplain LJ Sabalis Memorial USARC (PA004)
140 Stewart Road
Ashley, PA 18706

Project POC: PRI:	RFOS/QAR: Glenn Umberger	Wk: 910-598-5638	Cell:
Project POC/ALT:	AFOS: George Henry	Wk:	Cell: 570-449-8927
Project POC/ALT:	FAC COR: Wanda Merkel	Wk: 910-598-3279	Cell:
Project POC/RD:	FET: Scott Henry	Wk:	Cell: 570-527-7961
HQ Eng. Tech:	Jim Partyka	Wk: 609-562-3777	Cell:

1. GENERAL CONTRACTOR:

1.1. Shall furnish all plant, labor, equipment, materials, transportation, supervision and technical expertise to perform requirements in accordance with the specifications and allotted period of performance described in this Specifications of Work (SOW).

1.1.1. Shall provide their own storage shed or trailer for on-site office accommodations and for storing of equipment and material. The "On-Site Government Quality Assurance Representative" (QAR) will assign the contractor a location for placement of their shed or trailer upon request.

1.2. Is obligated to verify all measurements and specification requirements at the on-site visit prior to starting the project. No extra compensation shall be allowed for the contractor who does not attend the on-site visit and who does not appreciate the difficulty of the contract specifications. Any discrepancies, ambiguities or changes must be verified and confirmed in writing to the Contracting Officer, Contracting Officer Representative (COR), and QAR.

1.3. Shall furnish all submittals for equipment and/or materials that vary from requirements of this SOW. All submittals are required to be turned in and approved by the QAR 30 days prior to ordering any of those materials.

1.3.1. Shall provide, unless otherwise specified, new and unused materials and/or installed equipment in the original manufacturer's packaging. All materials stored on the job site are subject to inspection by the QAR and must be protected from the elements at all times.

1.4. Shall not perform any portion of this contract without notice to proceed. Shall not commence work prior to the Government COR/QAR pre-construction meeting. Shall notify the COR/QAR a minimum of 72 hours prior to commencing work and prior to completing work on this contract.

1.5. Shall submit, prior to commencing any work: A current Certificate of Insurance (Prime and Subs); A letter appointing a construction superintendent; A schedule of operations. The construction schedule shall be subject to change, so Contractor's operations do not conflict or otherwise disrupt normal operations of the government in the facility involved.

1.6. Shall perform the work between the hours of 0800 and 1630 (8:00 AM – 4:30 PM), Monday through Friday (unless otherwise specified), excluding legal holidays. NO EXCEPTIONS, any work on military training/drill weekends or federal holidays must have prior written coordination and approval between the Contractor, Project POC (Primary or Alternate), and the Facility Manager.

1.6.1. Shall submit on company letterhead to the QAR an "Entry Authorization Letter" registering all motor vehicles and driver/operators' information as required to access individual installations.

1.6.2. Shall ensure all motor vehicles, drivers and operators are qualified, licensed and insured.

1.7. Shall ensure compliance with all applicable Federal, State, and Local Municipal environmental regulations concerning the protection of land, water, and resources. Shall apply most stringent regulation requirements to any ambiguities, deviations must be approved in writing by the Contracting Officer or COR. The types and quantities of all hazardous materials brought to the job site shall be reported to the facility/installation environmental officer.

1.8. Shall call/coordinate, prior to any excavation, with local municipalities and the facility utilities section to identify all underground utilities.

1.8.1. Prior to any underground excavation, the contractor shall call and obtain approval from the state in which the work is being performed.

1.8.2. A copy of the approval notification letter or valid authorization number must be available for inspection at the excavation site.

1.9. Shall be responsible for any damages caused by them or their subcontractors during the performance of this contract and shall be required to reimburse the United States Government for the cost of any repairs resulting from those damages, or the Contractor/ Subcontractor shall make the necessary repairs to the satisfaction of the United States Government.

1.9.1. The contractor shall hold the Government harmless against any liability imposed by a Federal, State, or Local regulatory agency, resulting from the negligent acts or willful misconduct of the contractor to include assessment of a civil or administrative penalty or fine.

1.10. Shall be solely responsible for ensuring compliance with the provisions of this contract by subcontractors. Shall ensure work be performed by workmen skilled in their particular trades, and certified as required by Federal, State and Local laws and/or codes.

1.11. Shall be required to leave the job site in a safe and secure condition at the end of each workday. The contractor shall provide at his/her expense a Dumpster for all construction debris, dumping shall also be at contractor expense. The Contractor shall at no time use government dumpsters.

1.12. Shall clean the job site of all construction debris at the end of each working day. The daily clean-up will not alleviate the Contractor from the responsibility of the final clean-up for acceptance, upon completion of this contract. All debris removed from the job site shall be disposed of IAW all federal, state and local regulations, at a proper off post/facility landfill

or properly permitted treatment, storage and disposal facility for the type of waste, of the Contractor's own choice and at the Contractor's expense. In case of conflict among these laws and regulations, the most stringent law or regulation will apply. The Contractor shall verify that the facility receiving the waste is properly permitted or allowed to accept the type of waste being shipped to them. Due to mandating of solid waste annual reporting requirements, contractor shall provide any and all receipts, manifest/BOL, and/or other written record of types of waste and amounts disposed within 30 calendar days of the completion of the project. Records shall be provided to the RFOS/COR.

1.13. Shall ensure all work be completed in the negotiated time frame.

2. CONTRACTOR QUALITY CONTROL

2.1. The Contractor shall provide and maintain an effective quality control program that complies with the Contract Clause (FAR 52.246-12), the below stated quality control requirements and the quality control requirements stated in the respective section of the Technical Specifications. Quality control personnel shall also be charged with the responsibility of policing Contractor's Safety Program.

2.2. The Contractor shall establish a quality control system to perform sufficient inspection and testing of all items of work, including that of their subcontractors. The quality control system shall ensure conformance with applicable specifications and drawings with respect to materials, workmanship, construction, finish, functional performance, and identification.

2.3. The quality control system will be established for all construction except where the technical provisions of the contract provide for specific Government control by inspections, tests, or other means. The Contractor's quality control system will specifically include the surveillance and tests required in the technical provisions of the contract specifications. For purposes of the above description, shop manufacture or standard products are not defined as construction.

2.3.1. The Contractor's quality control system is the means by which they assure themselves their construction complies with the requirements of the contract plans and specifications. The controls shall be adequate to cover all construction operations, including both on and off-site fabrication.

2.3.2. The Contractor shall not build up or conceal any feature of the work containing uncorrected defects, and payment on deficient items will be withheld until they are satisfactorily corrected, or other action has been taken as authorized pursuant to the Contract Clause entitled "Inspection of Construction".

2.3.3. The Contractor's appointed job site supervisor may be used as the Quality Representative (QR). When supplemented by special technicians or testing facilities to perform all specified tests, balancing, adjusting and/or regulating mechanical and electrical devices, equipment and/or systems it will be done in writing. As an option, an industry recognized testing laboratory approved by the Contracting Officer or COR may be used for said testing.

2.3.4. The contractor is responsible for maintaining an effective quality control system. Recurring deficiencies indicate the system is not adequate and the contractor's performance is failing to meet government's minimum acceptable standards. If, in the opinion of the Contracting Officer, an unacceptable number of deficiencies are occurring in the contractor's performance, the Contracting Officer may direct the contractor to revise its operations to correct the defective performance. Failure by the contractor to provide acceptable revisions and/or to improve contract performance may result in the termination of the contract for default.

2.3.5. In the event the Contractor utilizes the service of a commercial testing laboratory, the Contracting Officer reserves the right to check laboratory equipment for compliance with the standards set forth in the contract specifications and to check the laboratory technician's testing procedures and techniques.

3. GOVERNMENT

3.1. The Government will provide, when available, electrical power, water and existing utilities at each building required in the performance of this contract at no cost to the Contractor. Temporary extension of power and/or water lines, if necessary, shall be installed at the Contractor's expense.

3.1.1. Contractor owned construction sheds, trailers, offices, or other such facilities requiring utility services shall be metered for each utility involved, and all costs involved up to the point of connection to Government owned utility systems shall be at the contractor's expense. Final connection of Contractor supplied service laterals to existing Government owned utility systems will be made at the Contractor's expense.

3.2. Contracting Officer or COR will schedule a pre-performance conference after contract award and prior to commencement of work. The Contracting Officer will notify the contractor of the time, date, and place set for the meeting, which will be held at a location to be designated by the Contracting Officer. At this meeting, the contractor will be oriented with respect to Government procedures and lines of authority, as well as contractual, administrative, and construction matters. **The contractor is required to furnish a current Certificate of Insurance and a letter appointing a construction superintendent at the meeting.**

3.2.1. **Pre-Construction Meeting (PCM):** Topics will cover but are not limited to the following:

3.2.1.1. Introduction of Key players: COR/QAR, General Contractor, Job-site Supervisor, Sub-Contractors and using agencies. Other personal that may be in attendance are Environmental, Police, Fire, Safety and Health services, in addition to Distinguished Visitors.

3.2.1.2. Specifications of Work (SOW): Brief description of work, modifications to SOW, customer requests for additional work, unauthorized work, facility access and authorized personnel access.

3.2.1.3. Milestones: Period of performance, start date, schedule, phasing, completion date, work hours desired, weekend work schedule, scheduled outages/interruptions (power, water, roads, alarms, fire protection, HVAC).

3.2.1.4. Materials: Submittals, equipment, construction area, storage area, Government provided utilities, dumpster locations, Barriers (construction fence, silt fence, roadblocks, access points to facilities, etc.)

3.2.1.5. Administrative: Lines of authority, Wage rate/certified payrolls, Daily reports, Visitor control, Environmental requirements (hazards, dust and noise control), Maintenance and submission of solid waste disposal records. Safety meeting/concerns, Excavation permits, Fire (burn Permits), Police support, Payments, Liquidated Damages.

3.2.2. Contracting Officer, COR and/or their QAR may inspect the work at any time during the contract period, and reserves the right to stop or terminate the contract if all work does not comply with the specifications provided by the manufacture's recommendation of this SOW. The presence or absence of the Contracting Officer or QAR shall not relieve the Contractor from strict compliance with these plans and specifications.

3.3. Technical surveillance of workmanship and inspection of materials for work being performed under this contract shall be the responsibility of the QAR. This provision in no way authorizes anyone other than the Contracting Officer to commit the Government to changes in the terms of the contract. In the event it is determined necessary to designate a QAR for this contract, such designation shall be by a separate letter to the individual selected with a copy furnished to the contractor.

3.4. The Government, its Officers and Agents will be free from liability for any negligence occasioned by the Contractor's operations, employees or equipment. In addition, the Contractor will reimburse the Government for any damage and/or loss that occurs as a result of the Contractor's negligent operations, employees or equipment.

3.5. The Government reserves the right to undertake performance by Government forces or other Contractors, the same type of similar work as contracted for herein, as the Government deems necessary or desirable, and to do so will not breach or otherwise violate this contract.

3.6. Federal Holidays (New Year's Day, Martin Luther King JR's Birthday, Presidents' Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day), that fall within the workweek will not be considered workdays. Whenever a holiday falls on a Saturday or Sunday, the proceeding Friday or following Monday respectively will be observed as a holiday. Prior to the contractor performing the work on days or at times other than those specified, the contractor shall submit a written request to the QAR for approval by the Contracting Officer. Requests for deviation shall be submitted no less than 24 hours prior to the time the contractor desires to work.

4. LIFE, SAFETY AND HEALTH REQUIREMENTS:

To better provide life, safety and health protection to all contractor employees, on-site personnel, and Government personnel performing or in any way coming in contact with this contract the specific requirements established here-in will be adhered to at all times:

4.1. 29 CFR 1910: Comply with all pertinent provisions of 29 CFR 1910 General, and with any additional measures the Contracting Officer may determine to be reasonably necessary. Copies of this manual may be obtained from the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C., 20402.

4.2. OSHA: Comply with latest version of OSHA Handbook Rules and Regulations.

4.3. NFPA: Comply with the most current edition of the National Fire Codes (NFPA) and installation fire prevention standards. www.nfpa.org/catalog

4.3.1. All open flame/hot work or disconnection of fire protection alarms or suppression systems require prior written approval/coordination from one of the 99th Readiness Division (RD) POC's listed on the first page of this document.

4.3.2. Any connection, disconnection or installation of fire protection alarms or suppression systems shall require an acceptance test performed by the contractor and witnessed by the local Fire Prevention Authority having jurisdiction over that facility. In the event the fire alarm system cannot be disconnected (i.e., child development, hospital, etc.) a temporary system will be provided and certified by the local Fire Prevention Authority having jurisdiction. Work required to be performed after hours due to the nature of the facility will be at no additional cost to the government.

4.3.3. All fire alarm system components, including all smoke and heat detectors, shall be protected from dirt, dust and damage during demolition and construction.

4.4. AR 420-1: Comply with Army Regulation 420-1,
https://armypubs.army.mil/epubs/DR_pubs/DR_a/pdf/web/ARN15517_R420_1_admin_FINAL.pdf

4.5. Lockout / Tagout Procedure: The Contractor shall perform this work in accordance with 29 CFR 1910.147, The Control Of Hazardous Energy and the following general requirements.

4.5.1. Preparation: Make a survey to locate and identify all isolating devices to be certain which switches, valves, or other energy isolating devices apply to the equipment to be locked or tagged out. More than one energy source such as electrical, mechanical or others may be involved.

4.5.2. Sequence Of Lockout/Tagout Procedure:

4.5.2.1. Notify all affected personnel that a Lockout/Tagout system is going to be used and the reason, therefore. The authorized personnel shall know the type and magnitude of energy the machine or equipment uses and shall understand hazards thereof.

4.5.2.2. If the machine or equipment is operating, shut it down by the normal stopping procedure such as depressing stop button, open toggle switch, etc.

4.5.2.3. Operate the switch, valve, or other energy isolating devices so that the equipment is isolated from its energy source. Stored energy such as in charged capacitors, springs, elevated machine members, rotating flywheels, hydraulic systems and other pressurized air, gas, steam, or water systems etc. must be dissipated or restrained by methods such as repositioning, blocking, or bleeding down the stored energy.

4.5.2.4. Lockout and/or tagout the energy isolating devices with assigned individual locks, tags, or additional safety measures as may be required.

4.5.2.5. After ensuring that no personnel are exposed, and as a check on having disconnected the energy sources, operate the push button or other normal operating controls to make certain the equipment will not operate.

CAUTION: Make sure the operating controls are returned to the "NEUTRAL" or "OFF" position after the test.

4.5.2.6. The equipment is now locked out or tagged out.

4.5.3. Restoring Machines or Equipment To Normal Production Operations:

4.5.3.1. After the servicing and/or maintenance is complete and equipment is ready for normal production operations, check the area around the machines or equipment to ensure that no one is exposed.

4.5.3.2. After all tools have been removed from the machine or equipment, guards have been reinstalled, and personnel are in the clear, remove all lockout and tagout devices. Operate the energy isolating devices to restore energy to the machine or equipment.

4.5.4. Procedure Involving More Than One Person: In the preceding steps, if more than one individual is required to lockout or tagout equipment, each shall place his/her own personal lockout or tagout device on the energy isolating devices. When an energy-isolating device cannot accept multiple locks or tags, a

multiple lockout or tagout hasp shall be used. If a single lock is used to lockout the machine or equipment, the single key shall be placed in a lockout box or cabinet that allows the use of multiple locks to secure it. Each employee shall then use his/her own lock to secure the box or cabinet. As each person no longer needs to maintain his/her lockout protection, only that person shall remove his/her lock from the box or cabinet.

4.6. USACE EM 385-1-1: The Contractor shall be responsible for knowing the Corps of Engineers, Safety and Health Requirements Manual, EM 385-1-1, (use the current version at the time of task order award) and incorporate those general and additional safety requirements into daily working procedures to provide safe working conditions during performance of this contract. Copies of this manual may also be obtained from the Superintendent of Documents. <https://www.usace.army.mil/Missions/Safety-and-Occupational-Health/Safety-and-Health-Requirements-Manual/>

4.7. Site Safety Plan: The Contractor shall submit in writing a Site Safety Plan and present the overall safety program via in-person conference with the Contracting Officer and/or Primary Project POC. The Site Safety Plan shall follow the requirements of the EM 385-1-1 and include all relevant Accident Prevention and Activity Hazard Analyses. The Site Safety Plan shall include provisions to deal with hazardous materials, pursuant to the Contract Clause entitled "Hazardous Material Identification and Safety Data".

4.7.1. With respect to hazardous materials, the plan will consist of:

4.7.1.1. A plan for protecting personnel and property during the transport, storage, and use of the materials.

4.7.1.2. An index of hazardous materials to be introduced to the site.

4.7.1.3. Safety Data Sheets (SDS) for materials listed in the index of the plan and not required in the technical section of the specification.

4.7.1.4. Procedures for spill response and disposal.

4.7.2. The Contractor shall not turn in hazardous waste generated during performance of the contract, for disposal by the government, unless such disposal is explicitly provided for in the contract. If specified in the contract, the Contractor shall provide an SDS for each hazardous material/waste turned in to the government for disposal.

4.7.3. The contractor shall not dispose hazardous materials/waste in any dumpster, sanitary sewer, storm sewer or dispose of hazardous materials/waste by any other means on government property.

4.7.4. The contractor shall not sign any hazardous waste manifest. Signature authority for hazardous waste manifests is delegated only to certain personnel within the Environmental Office. The contractor shall provide copies of all manifests or bills of lading for the transportation and disposal of all asbestos or asbestos containing materials to the Environmental Office.

4.8. HAZARDOUS MATERIAL CONTACT (PCB, Asbestos or Lead Material): If material is encountered which may contain PCB's, hazardous materials, asbestos and/or lead and must be disturbed, DO NOT touch the material. Should the discovery of such suspected material affect the Contractor's planned work schedule, the Contractor shall redirect the work crew to other portions of the unaffected work and modify the schedule at no additional cost to the Government.

4.8.1. Contractor shall contact/notify RFOS from page one of this specification of work immediately if suspected material as described in section 4.8. is encountered.

4.8.2. Contractor shall in writing, address circumstances and concerns to be addressed by the RFOS regarding the discovery of the suspected material and of any adverse impact the Contractor may expect to incur due to this situation.

4.8.3. The RFOS as identified will, within 14 calendar days, perform laboratory tests to determine if the material is a hazard. If there is not a danger, the RFOS will direct the Contractor to proceed in the identified area without change. If the material is identified as hazardous, before proceeding, the RFOS will determine the most cost-effective means for removal. The hazardous material will be removed, abated or rendered harmless before work commences.

4.9. Environmental Protection Requirements: Provide and maintain strict compliance with all federal, state, county and local environmental protection requirements including but not limited to, water, air, soil, and noise pollution during the life of this contract.

4.9.1. In the event of a spill, initiate containment operations utilizing personnel properly trained and protected for such situations and immediately notify the Contracting Officer and/or On-Site Representative/POC from page one.

4.9.2. Plan for and provide environmental protective measures to control pollution that develops during normal construction practice.

4.9.2.1. Prevent oily or other hazardous substances from entering the ground, drainage areas, storm drainage system, or local bodies of water.

4.9.2.2. Keep dust down at all times, including during nonworking periods. Sprinkle or treat with dust suppressants, the soil at the site, and other areas disturbed by operations. Dry power brooming will not be permitted. Instead use vacuuming, wet mopping, wet sweeping, or wet power brooming. Only wet cutting will be permitted for cutting concrete, and bituminous concrete.

4.9.2.3. Handle generated hazardous waste in accordance with federal, State, county and local regulations including 40 CFR 262.

4.9.3. Plan for and provide environmental protective measures required to correct conditions that develop during the construction of permanent or temporary environmental features associated with the project. Dispose of hazardous waste in strict accordance with federal, State, county and local regulations including 40 CFR 263 and 40 CFR 264.

4.9.4. Make the maximum use of low-noise emission products, as certified by the EPA. Blasting or the use of explosives is prohibited.

4.10. Ozone Depleting Substances (ODS): The Contractor shall not knowingly vent or otherwise dispose of any ODS in a manner that would permit their release into the environment. ODS's are generally found in refrigerants, fire-fighting agents, and solvents.

4.10.1. The Contractor shall use only those products that are approved and listed by the EPA Significant New Alternatives Program (SNAP).

4.10.2. The Contractor shall furnish a material safety data sheet to the Government representative prior to use of any ODS or SNAP product on station.

4.10.3. Class I ODS's: The use on installations or the removal off an installation is strictly prohibited without the prior knowledge and consent of the Contracting Officer.

4.10.4. Class II ODS's: Shall be used only when specified by the Government.

4.10.5. When ODS's of any class are used or saved for reuse, the Contractor shall list this amount in pounds on the "Daily Report to Inspector" form and the Contractor's invoice.

4.10.6. ODS's shall be captured and recycled in conformance with all applicable Federal, State, and local regulations.

4.11. Safety Officer: The Installation Safety Officer will be responsible for monitoring the contractor in the area of safety and accident prevention. Additional information may be provided, and Contractor shall comply with the safety rules of the Government installation concerning related activities not directly addressed in this contract. Always use personal hearing protection in designated noise hazardous areas or when performing noise hazardous tasks. Safety glasses must be worn or carried/available on each person. Mandatory PPE includes Hard Hat, Long Pants, Appropriate Safety Shoes, Appropriate Class reflective Vests.

4.11.1. The Contractor's personnel, when operating motor vehicles, shall not exceed ten (10) miles per hour when passing military troops on the roadways, and abide by post speed limits otherwise.

4.12. Occupancy:

4.12.1. It shall be the Contractor's responsibility to coordinate with QAR to schedule and perform his work in such a manner as to create the least possible interference with the conduct of normal activities within the areas.

4.12.2. The Contractor shall not receive any additional compensation due to the conditions brought about by this occupancy and usage of the Government.

4.12.3. Contractors are only authorized to occupy areas in which active construction, maintenance, repair or associated work in the performance of the contract is required to be done.

4.12.4. The Contractor shall not block more than one access of the building at any time, nor shall he disrupt the existing parking arrangement at any of the building parking areas without prior coordination with the QAR.

5. CONDUCT OF EMPLOYEES

5.1. The contractor is fully responsible for the performance and conduct of his employees at all times while on post performing under the contract. The Contractor shall not allow any employee to perform work under the contract while under the influence of alcohol, drugs or any other incapacitating agent.

5.1.1. Contractor employees will abide by the DOD Smoking Policy.

5.2. Military police and other law enforcement personnel on post have the right to deny entry to post or remove from post any contractor employee for misconduct which endangers the health or safety of people

or property or for reasons of security. In addition, the Post Commander may bar an individual from entering the post under the authority of 18 U.S.C. 1382.

5.3. Removal from post of a contractor employee in accordance with above shall not relieve the Contractor from the requirement to meet all of the terms and conditions of the contract.

6. SECURITY

6.1. At all times during the performance of work within the facilities, the Contractor and their employees shall remain cognizant of security restrictions existing within the facility. The Contractor's employees shall ensure any doors, windows or access panels which may have been opened for them during the course of the work period are secured at the end of the day.

6.2. The Contractor shall report any incident in which no escort is provided for scheduled work within secured areas of the building or any occurrence during which an escort leaves the Contractor's employees while within a secure area.

6.3. The Contractor and their employees may store tools and equipment within the work area. However, recognize they do so at their own risk even if the area can be secured.

7. INSPECTOR GENERAL'S (IG) AUTHORITY TO INSPECT CONTRACTORS

7.1. The Inspector General shall have access to the Contractor's facilities, employees, operations, and records at the site where work is being performed at all times to conduct inspections or for other purposes. Where feasible, advance notification of an IG inspection or investigation will be provided to the Contractor by the Contracting Officer.

8. DEFINITIONS

8.1. Where the words "Special Contract Clauses" or "Special Clauses" appear in test provisions, the Technical Specifications, or on contract drawings, it shall be taken to mean "Special Contract Requirements".

8.2. Throughout this contract, the word "indicated", "shown", or "specified" shall mean indicated, shown, or specified in the drawings and/or specified in the specifications.

8.3. Throughout this contract, the words "as directed" "inspected", "selected", or "accepted" shall mean as directed, inspected, selected or accepted by the QAR. The words "approved" or "authorized" shall mean approved or authorized by the Contracting Officer. These definitions are provided as guidance for the contractor and shall service as the governing interpretation when this language appears within the body of this contract and apparently conflicts with the above.

9. APPLICABLE PUBLICATIONS:

Those applicable publications that are not listed in the Applicable Publication paragraph of the Technical Specifications sections but are found elsewhere in the text of those specifications, also form a part of this contract.

10. SUBMITTALS / DELIVERABLES

10.1. SUBMITTALS: Contractor shall provide submittals to the COR for submittal approval minimum 30 days prior to scheduled installation of any referenced materials substituted in the technical sections herein, unless otherwise noted. Submittals shall be approved prior to installation of any referenced materials substituted.

10.1.1. Original and four (4) copies of each submittal shall be provided and signed by the contractor. Once approved, original and four copies will be stamped “Approved”, signed and dated by the COR.

10.1.2. Distribution of submittals: Approved submittals will be included in the deliverables portion as stated in paragraph 10.2 below.

10.2. DELIVERABLES: Send a minimum of 30 days prior to contract completion date original and four (4) copies of ALL final documentation; submittals, certifications, laboratory tests, descriptive data, test reports, required shop drawing, site surveys, and warranties. Send via First Class Mail, FedEx, or UPS to:

99th Readiness Division; HQ

Attn: DWP Operations: Contract# _____

Fort Dix, NJ 08640

10.3. The Contractor shall furnish to the above address the original manufacturer’s documentation and four (4) copies demonstrating material proof of compliance requirements in regard to Technical Specifications for this contract.

10.3.1. Certificate of Compliance:

10.3.1.1. Name and address of the Contractor.

10.3.1.2. Project name.

10.3.1.3. Location.

10.3.1.4. Quantity.

10.3.1.5. Dates of shipment or delivery to which the certificates apply.

10.3.1.6. Each certificate shall be signed by an authorized officer of the manufacturing company.

10.3.2. Laboratory Tests: Reports submitted with the certificate shall contain:

10.3.2.1. Name and address of the testing laboratory.

10.3.2.2. Date of the tests to which the report applies.

10.3.3. Samples: The Contractor shall furnish samples of materials for approval, as required by the applicable sections of the technical specifications that differ from the specification.

10.3.4. Descriptive Data: The Contractor shall furnish the manufacturer’s descriptive data, installation instructions, and maintenance instructions, for approval, as required by the applicable sections of the technical specifications.

10.3.5. Test Reports: The Contractor shall furnish copies of test reports for approval to demonstrate compliance with the applicable sections of the technical specifications that differ from the specification.

10.3.6. Shop Drawings: Consist of illustrations, schedules, performance charts, instructions, brochures, diagrams, drawings and other information to illustrate and/or demonstrate compliance to the applicable sections of the technical specifications.

10.3.6.1. The Contractor shall furnish for approval, one copy “DRAFT Shop Drawing”. Each rendition will be numerically annotated until final approval.

10.3.6.2. The Contractor shall furnish finalized drawing copies “AS BUILTS” and all applicable support data once agreed upon by the Contracting Officer/COR and/or Project POC. Each submission shall include:

10.3.6.2.1. Four (4ea) half size paper copy (provide full size paper drawing sets if half size is unreadable).

10.3.6.3.2. Two (2ea) identical copies on optical media discs to Include the drawing sets in both PDF and CAD format (CAD files to be Microstation.dgn files Geo-referenced to WGS84 coordinate system). For smaller projects AutoCAD DWG files are acceptable. An electronic copy of the specifications associated with the project. Drawing index in MS Excel listing each drawing title, sheet name, drawing number, sheet number, and electronic file name for the drawings of the project.

10.4. Documentation shall not be construed as relieving the Contractor from furnishing satisfactory material, if after tests are performed on selected samples of the material is found not to meet the specific requirements.

11. TECHNICAL SPECIFICATIONS:

CSS# 90330 – Sealcoat and Restripe Asphalt

Chaplain LJ Sabalis Memorial USARC (PA004)
140 Stewert Road
Ashley, PA 18706

11.1. PERIOD OF PERFORMANCE: The Contractor shall have **120 Calendar Days** from the Notice to Proceed Date to complete ALL TASKS associated with the Specification of Work.

11.1.1. SECURITY:

The Contractor Superintendent of the project shall inform their employees (contractors) about suspicious activity reporting, iWatch procedures and Antiterrorism/OPSEC Awareness. The COR shall keep proper accountability of their personnel. In the event of an escalated FPCON, there may be extra security measures put in place and it may cause a hindrance to complete the project in the allotted time according to the contract. This will be at no expense to the government.

The correct web address for AT Level I is: <https://jkodirect.jten.mil>

Non CAC card holders also have to complete AT Level I, training available at:

<http://jko.jten.mil/courses/at11/launch.html>

OPSEC Training: OPSEC Fundamental Course (OPSE-1301) CBT, <https://www.iad.gov/ioss/>

11.1.1. (1) **AT Level I training.** All contractor employees, to include subcontractor employees, requiring access Army installations, facilities and controlled access areas shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this

requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer, if a COR is not assigned, within 5 calendar days after completion of training by all employees and subcontractor personnel. AT level I awareness training is available at the following website: <http://jko.jten.mil>

11.1.2. (2) **Access and general protection/security policy and procedures.** Contractor and all associated sub-contractors employees shall provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

11.1.3. (2b) **For contractors that do not require CAC, but require access to a DoD facility or installation.** Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

11.1.4. (4) **iWATCH Training.** The contractor and all associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity ATO). This local developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 5 calendar days of new employees commencing performance with the results reported to the COR NLT 5 calendar days after contract award.

11.1.5. (7) **For contracts that require OPSEC Training.** Per AR 530-1 *Operations Security*, the contractor employees must complete Level I OPSEC Awareness training. New employees must be trained within 30 calendar days of their reporting for duty and annually thereafter.

ACC-NJ OPSEC

11.2. GENERAL REQUIREMENTS:

11.2.1. The Contractor shall provide all plant, labor, equipment, tools, materials, supervision, and transportation to accomplish the following work which consist of but is not limited to: Asphalt parking lot maintenance; crack seal, apply sealcoat, and paint/stripe approximately 128 new parking lines in the private vehicle parking lots (POV) ; crack seal and apply sealcoat to the military equipment parking lot (MEP), and roadways.

All quantities are estimated. Contractor shall field verify all dimensions and quantities prior to ordering material. Contractor is responsible to have all site utilities marked in the area of construction before any earthwork is performed. Failure of the contractor to conduct a site visit and appreciate the complexity of the specifications herein shall not indemnify said contractor from contract obligations as stated. All work completed herein shall be in accordance with but not limited to:

- **UNIFIED FACILITIES GUIDE SPECIFICATIONS (UFGS) –**
[HTTP://WWW.WBDG.ORG/FFC/DOD/UNIFIED-FACILITIES-GUIDE-SPECIFICATIONS-UFGS](http://WWW.WBDG.ORG/FFC/DOD/UNIFIED-FACILITIES-GUIDE-SPECIFICATIONS-UFGS) <https://wbdg.org/ffc/dod/unified-facilities-criteria-ufc>

- UFC – UNIFIED FACILITIES CRITERIA
- ARMY REGULATION 420-1
- RCRA – RESOURCE CONSERVATION AND RECOVERY ACT
- EM 385-1-1, SAFETY and HEALTH REQUIREMENTS MANUAL

11.2.2. The Contractor and associated sub-contractors shall provide a safe and healthful work environment for their employees as prescribed in FAR 52.236-13, 29 CFR Part 1910, pertinent provisions of AR 385-10, and local regulations, policies, and SOPS. Contractor/s shall safeguard public and government personnel, property and equipment, as well as avoid interruption of Government Operations. The Contractor shall report accidents or losses to the Contracting Officer as specified in relevant regulations and standards. Whenever the contractor becomes aware of serious or imminent danger to Government, civilian or contractor personnel, the contractor shall take immediate corrective action.

11.2.3. The Contractor shall maintain work areas in a neat, clean, and safe condition. The Contractor shall be responsible to provide portable restroom facilities for their employees. The Contractor shall be responsible for providing, installing and the removing any temporary signage, barriers, barricade tape, etc., which may be required to control pedestrian and/or vehicle traffic in the work area.

11.2.4. This Army Reserve Facility is an active workplace. Contractor shall provide a proposed schedule of work at time of proposal to perform work in stages to minimize disruption of day-to-day activities throughout the facility and grounds. Contractor shall make best efforts to adhere to said schedule and will have full cooperation from facility employees. RFOS and Facility Commander or other authorized Government Official shall approve schedule. Contractor shall provide a minimum of weekly project updates to RFOS/COR as to progress on project and adherence to schedule.

11.2.5. In an effort to allow the government the opportunity to fully to evaluate and validate contractor pricing and desired intent of the cost proposal; the Contractor shall provide a written narrative to support the cost data in the contractor's cost proposal. Detailed breakout for all pricing in proposal is required; lump sum pricing is unacceptable. Cost proposal shall include a detailed narrative describing the approach to accomplishing the scope of work and clearly stating all assumptions included in the proposal price. As the basis for the contractor pricing and in an effort to assist the government with the reconciliation of which items in the contractor's price proposal are considered New vs Re-used the contractor shall include a spreadsheet with the cost proposal that clearly state what those items are.

11.2.6. The Contractor shall submit proper and complete documentation to the COR verifying that all hazardous wastes generated were disposed of properly offsite in accordance with federal and state RCRA regulations. The contractor shall also submit proper and complete documentation verifying the recycling or disposal of all Universal wastes and non-hazardous wastes generated. The Government is not aware of any asbestos containing materials in the immediate work area; however, it shall be the contractor's responsibility to determine whether asbestos containing materials will be disturbed because of this project. If it is determined that asbestos containing materials will be disturbed, the contractor shall comply with all Federal, State and Local environmental and safety regulations. All records must be submitted in accordance with the provisions of the Cleanup, Removal & Disposal Records section of this SOW.

11.2.7. NATIVE AMERICAN GRAVES PROTECTION AND REPATRIATION ACT:

In the event of an inadvertent discovery of Native American human remains or other cultural items, i.e. shard or examples of former encampment, the vendor must cease activity in the area and immediately contact the 99th Readiness Division Environmental Team, Stephanie Weiss, Conservation Program

Coordinator, at (609)562-2762 or stephanie.r.weiss.ctr@army.mil to remain in compliance with 43 CFR 10.2 (g)(4)."

11.3. PROJECT SPECIFICATIONS:

11.3.1. **Required: Pre-Construction Meeting - (PCM):** Prior to commencing the work, the Contractor shall meet with the Regional Facilities Operations Specialist, (RFOS) and/or the project COR to present and review, as appropriate, the items in this specification of work. The Contractor's Competent Person(s) who will be on-site shall participate in the PCM meeting. The PCM meeting is to discuss and define contractor procedures and materials to be used during the project execution and shall be formally approved by 99th Readiness Division (RD) personnel as defined above.

11.3.2. This project has been assembled to maintain all asphalt areas at the Ashley Army Reserve Facility which consists of 2 areas. The intent is to seal cracks, apply sealcoat, and paint/stripe approximately 128 new parking lines to the POV; seal cracks and apply sealcoat to (MEP), and service roadways.

11.3.3. The Contractor shall reference the attached Technical Exhibit for:

- Identified area of Roadways, POV, MEP
- Draft of POV parking stalls
- Locations illustrated on the Technical Exhibit to be verified by the RFOS or government representative at the PCM.

11.3.4. The Contractor shall ensure all work is performed in a neat and workmanlike manner consistent with the highest quality standards of the trade.

11.3.5. The Contractor is responsible for the restoration of all work area(s) to a finished condition.

11.3.6. The Contractor shall schedule the work in a multi-phase manner. This location is a fully staffed with full time personnel. A phasing plan shall allow reserve personnel to report to work and shall be presented and discussed at the pre-construction meeting.

11.3.7. The Contractor shall conduct a Final Inspection walkthrough with the AFOS/COR at the time of project conclusion.

- Final Inspection is required and shall be conducted at the time of the project conclusion once:
 - All Tasks are completed.
 - Site is neat, cleaned, and work materials removed.

11.4. PREPARATION

11.4.1. The Contractor shall stipulate in the project work plan as to the intended method of disposal for all anticipated wastes generated. DoD prefers and encourages recycling of waste materials generated rather than disposal.

11.4.2. The Contractor shall prepare all asphalt surfaces (approx. 146,403 S.F.) for the application of crack sealant and asphalt sealcoat. Immediately before applying the first course of bituminous material, clean the surface of loose material with power brooms, power blowers, compressors and/or vacuums. The Contractor shall ensure the removal of all dirt, clay, and other loose material or foreign matter. The Contractor shall dry all cracks prior to filling using an air lance. All locations where oil and grease are present shall be cleaned and spot primed and allowed to dry.

11.4.3. The Contractor shall remove the concrete wheel stops for eighty (80) parking stalls in the POV parking areas and set aside for reuse.

11.5. INSTALL AND SERVICE - PARKING LOTS, RUNNING TRACK and ROADWAYS

11.5.1. The Contractor shall provide and install asphalt crack sealant such as Crack Master PL hot pour crack sealant, as manufactured by Seal Master (or an approved equivalent) to fill all cracks ¼" wide or wider in the existing asphalt surfaces, to include all curbed edges, building edges and aprons that meet up to an asphalt surface. There are approximately 5,600 linear feet of cracks to be sealed. Cracks 1/2 inch wide and wider shall be filled with a slurry of fine sand and an emulsified asphalt or liquid asphalt. After the slurry has cured, cracks shall be sealed with liquid asphalt or emulsified asphalt. The temperature shall vary so that it flows freely into cracks and completely fills cracks without entrapping air. Cracks shall be free of moisture before filling and shall be filled slightly above the pavement surface. Traffic will not be permitted over sealed cracks until the sealer has cooled so that it is not picked up by vehicle tires.

11.5.2. The Contractor shall re-clean all asphalt surfaces to receive sealcoating. Asphalt surfaces to receive sealer includes access roads, service roads, MEP and POV parking areas. (See attached Technical Exhibit) Contractor shall add crack sealant to any location where previously placed sealant has sagged and is not flush with the asphalt surface.

11.5.3. The Contractor shall protect all existing structures from splatter/overspray from crack sealant, line striping, and pavement sealer applications, including curbs, gutters, sidewalks, pads, aprons, islands, pedestals, walls, doors, fence, gates, rails, bollards, signposts, pipes, downspouts, aggregate shoulders, and any other existing structure.

11.5.4. The Contractor shall provide and apply two (2) coats Type 1 slurry seal such as Seal Master PMB bituminous pavement sealer (or approved equal) to approximately 146,403 Square Feet of asphalt surface as per the manufactures specifications. The application of the bituminous material shall be a uniform distribution over all surfaces treated. The Contractor shall allow at least 24 hours drying time between each coat and after the final coat.

11.5.6. The Contractor shall layout parking stalls and pavement markings of the same configuration and color that existed prior to start of construction, in the POV parking lots.

11.5.7. The Contractor shall provide and install pavement markings in the POV parking areas, providing approximately 122 parking stalls, six (6) designated handicapped stalls with symbols, three (3) handicapped access aisles, eleven (11) traffic flow directional arrows, and six (6) NO parking islands. All lines shall be 4" wide white in color, parking stalls shall be approx. 9' x 18.5' with the exception of the handicapped stalls, they shall be blue in color, 8' x 18.5' with three (3) attached 8' x 18.5' access aisles. Attached line striping drawing in the Technical Exhibit is for reference only.

- Line striping to include all POV parking stalls, traffic flow arrows, and NO parking island markings.
- Line striping to include six (6) "Handicap Parking" spaces marked in blue, with three 8' access aisles.
- Striping/ parking stall layout plan to be verified by the RFOS/COR before striping begins.

11.5.8. The Contractor shall re-install the concrete wheel stops for the eighty (80) parking stalls in the same configuration prior to the start of construction.

11.6. CLEANUP AND REMOVAL AND DISPOSAL RECORDS:

11.6.1. The Contractor shall remove all contract-generated debris from the construction site and dispose of the debris off site at an approved landfill/facility. Due to mandating of solid waste annual reporting requirements, contractor shall provide all receipts, manifest/BOL, and/or other written record of types of waste and amounts disposed within 30 calendar days of the completion of the project. Disposal shall be in accordance with Local, State and Federal laws and regulations. In case of conflict among these laws and regulations, the most stringent law or regulation will apply. All disposal records shall be provided to the COR.

11.6.2. The Contractor shall remove any crack sealant, paint, or pavement sealer splatter/overspray from existing structures. Any existing structure damage during construction activities shall be repaired at no additional cost to the government.

11.7. WARRANTY

11.7.1. The contractor shall provide documentation of the Standard Manufacturer's Warranty for all new materials being installed. * NOTE * This is not to be an Extended Warranty. The Federal government does not wish to purchase an extended warranty for this project. The Federal government only wishes to know the extent of the warranty that is being provided.

12. THIS CONCLUDES THE REQUIREMENTS OF THIS SOW: